

The Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas) Rules, 1992

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[THE-RAJASTHAN-LAND-REVENUE-CONVERSION-OF-AGRICULTURAL-LAND-FOR-NON-AGRICULTURAL-PURPOSES-IN-RURAL-AREAS-RULES-1992](#) of 1992

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[The Rajasthan Land Revenue \(Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas\) Rules, 1992](#)

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In exercise of the powers conferred by clause (xi-A) of sub-section (2) of Section 261 read with Section 90-A of the Rajasthan Land Revenue Act, 1956 (Rajasthan Act 15 of 1956), the State Government hereby makes the following rules for conversion of agricultural land for non-agricultural purposes in rural areas, namely:

1.

Short title, extent and commencement.

(1)

These rules may be called the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas) Rules, 1992.

(2)

They shall extend to all rural areas in the State of Rajasthan.

(3)

These rules shall come into force on the date of their publication on the Official Gazette.

2.

Interpretation.

(1)

In these rules, unless there is anything repugnant to the subject or context:

(a)

'Act' means the Rajasthan Land Revenue Act, 1956 (Rajasthan Act 15 of 1956).

(b)

'Commercial purpose' means the use of any premises for any trade or commerce or business which shall include a shop, commercial establishment, bank [x x x]

[Deleted by No. G.S.R. 148, Dated 11-3-97; published in Rajasthan Gazette Part 4(Ga), Dated 18-3-97, p. 273(2)]

office, dhaba (whether pucca or temporary structure), show-room, cinema, petrol pump, weigh bridge, godown or any other commercial activity [and shall also include the use thereof partly for residential and partly for commercial purposes]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

,

[but shall not include anything included in tourism units.]

[Inserted by No. G.S.R. 148, Dated 11-3-97; published in Rajasthan Gazette Part 4(Ga), Dated 18-3-97, p. 273(2).]

(c)

Form' means a form appended to these Rules.

(d)

Industrial Area' means an area of land developed by the Rajasthan Industrial Development and Investment Corporation [or Rajasthan Tourism Development Corporation Ltd., as the case may be]

[Inserted by No. G.S.R. 148, Dated 11-3-97; published in Rajasthan Gazette Part 4(Ga), Dated 18-3-97, p. 273(2).]

for setting up an industry of industries including essential welfare and supporting services e.g. post office, bank, power station, police station, fire-fighting station. residential house, educational institution, hospital, dispensary, hotel, restaurant, market, cinema, petrol pump, weigh bridge, water and sewerage facilities.

(e)

'Industrial purpose' means the use of any premises or workshop or an open area for any industry [including Information Technology Industry]

[Inserted by Notification No. G.S.R. 15, dated 30.4.2001 (w.e.f. 28.4.1992).]

whether a small or medium or large scale unit [or a Tourism unit]

[Inserted by No. G.S.R. 148, Dated 11-3-97; published in Rajasthan Gazette Part 4(Ga), Dated 18-3-97, p. 273(2).]

and shall include a brick kiln or a kiln but shall not include any premises used for a purpose as defined in clause (b).

(ee)

['Medical facilities' shall include Medical Hospitals, diagnostic centres and nursing homes.]

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

(f)

['Periphery Village' shall have the same meaning as assigned in the Rajasthan land Revenue (Allotment, Conversion and Regularisation of Agricultural land for Residential or Commercial Purposes in Urban Areas) Rules, 1981 framed under the Act]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

.

(g)

'Person' means a human being and shall include a firm, registered society, association of persons, corporate body or any other legal person.

(h)

'Population' means population of a village as per the latest census.

(i)

'Prescribe Authority' means the authority as prescribed in rule 8.

(j)

'Public utility purpose' means use of any premises or open land or play ground for a school, college, hostel [x x x]

[Deleted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

, Dharamshala, public guest house, religious place, gaushala or public park or any other place of public utility, Inserted by [excluding use of medical facilities as given in rule 6 (vi)]

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

.

(k)

'Rural area' means any land falling within the boundary of a village defined under clause (v) of section 3 of the Act and shall not include any periphery village as defined in clause (f) and any local area for which a Municipal Council or Municipal Board is constituted under the Rajasthan Municipalities Act, 1959 (Rajasthan Act 38 of 1959) which shall include a notified areas or cantonment areas.

(l)

'Residential purpose' means use of any premises for dwelling of human beings.

(m)

[Tourism unit' means a tourism project approved by the Department of Tourism. Government of India or by the Tourism Department Government of Rajasthan and shall include-

[Inserted by No. G.S.R. 148, Dated 11-3-97; published in Rajasthan Gazette Part 4(Ga), Dated 18-3-97, p. 273(2).]

(a)

A heritage Hotel.

(b)

Any other Hotel.

(c)

A motel which provided wayside facilities under one roof, such as accommodation, food, repair shop.

(d)

A camping site with furnished tented accommodation, having at least fifty tents along with bathroom and toilet facilities.

(e)

A restaurant.

(f)

A holiday resort providing sports and recreational facilities, riding, swimming and social amenities with boarding and lodging arrangements in Cottages.

(g)

An amusement park providing various types of rides, games and amusement for children as well as for adults.

(h)

A safari park developed with the permission of the Forest Department.

(i)

An aerial ropeway established under the prevailing rules and regulations.]

(2)

Words and expressions, not defined in these Rules but defined in the Act, shall wherever used in these Rules, be construed to have the meanings assigned to them in the Act.

3.

Purposes for which Agricultural land may be converted.

- Any cultural land held in the Khatedari tenancy of the applicant, may be converted, subject to the land use shown in the Master Plan, or the provisions of the Urban Land (Ceiling and Regulation) Act, 1976, as may be applicable, for one or more of the following purposes:

(i)

Residential

(ii)

Commercial

(iii)

Industrial or Industrial Area

[(iii-a) Medical facilities]

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

(iv)

Salt manufacturing, or

(v)

Public Utility.

4.

Land for which conversion not to be permitted.

- No permission granted for conversion of the-

(a)

Land which is under acquisition under the Land Acquisition Act. 1894.

(b)

Land falling within the boundary limits of any railway line, national Highway, State Highway or any other road maintained by the Central or State Government or any local authority, as specified in any Act or Rules of the Central or State Government made in this behalf, or 20 feet of the middle of any rural pathway, as shown in the revenue map of a village.

(c)

Land falling within the radius of 1 km. of the outer limits of abadi of a village for the purpose of an industrial unit [x x x]

[Deleted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

or lime kiln or an industrial areas. [This restriction shall not apply where the conversion is sought for brick kiln or non-polluting industry, small or cottage industry.]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

(d)

Land used as catchment areas of a tank or village pond or land used as pathway to any cremation or burial ground or village pond, even if not so recorded in the village revenue map or revenue record.

5.

Conversion for Dwelling House, Cattle-shed or Store-house without premium.

- A Khatedar tenant shall be entitled to convert his agricultural holding for construction of a dwelling house or cattle shed or store house on an area not exceeding 500 sq. meters, without any premium payable under rule 6. The area so converted shall continue to be in his khatedari tenant.

5A.

[Use of Khatedari land for establishment of small scale Industries.

[Inserted by Notification No. G.S.R. 23, dated 21.5.2001 (w.e.f. 28.4.1992).]

- Notwithstanding anything contained in these rules no permission for conversion shall be required where a Khatedar tenant establishes a small scale industrial unit on his own Khatedari land upto an area not exceeding 1000 sq. meters. The area so used shall continue to be in his Khatedari.]

6.

Premium.

- The premium payable for conversion of agricultural land for non-agricultural purposes, for the area not covered by rule 5, shall be as under:

Rate

(i)

Residential purpose:

(a) For a village having a population of not more than 5000 persons.

[Re. 1/- per sq. mtr. for an area upto 2000 sq. metres and Rs.

2/- per sq. mtr. for an area in excess of 2000 sq. mtrs.]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

(b) For a village having a population of more than 5000 persons.

[Rs. 2/- per sq. mtr. for an area upto 2000 sq. mtrs. and Rs.

4/- per sq. mtr. for an area in excess of 2000 sq. mtrs.]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

(ii)

Commercial purpose

Four times of the rate prescribed in [clause (i) above for an area upto 200 sq. mtrs. and eight times of the rate prescribed in clause (i) above for an area in excess of 200 sq. mtrs.]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

(iii)

Industrial purpose or Industrial area

Re. 1/- per sq. mtr.

(iv)

Salt manufacturing purpose

Rs. 1000/- for every hectare of land or part thereof.

(v)

Public utility purpose

Without premium.

[Medical facilities of following categories.-]

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

Category A

Charitable institution willing to install at least one advanced diagnostic for curative plant/ equipment from within the list approved by the Government of Rajasthan from time to time or provide some medical facility for advanced medical services or super speciality as per the plan approved by the State Government.

Re. 1/- per sq. yd.

Category B

Charitable institutions not covered under category 'A'

Re. 1/- per sq. yd.

Category C

Institution willing to set up speciality hospitals in specialities approved by the Government for a particular area.

Re. 1/- sq. yd.

Category D

Nursing homes, hospitals, diagnostic centres, clinics and dispensaries run on commercial lands and not covered by other categories.]

Rs. 3/- per sq. yd.

7.

Exemption of premium.

(1)

No premium shall be payable by any department of State Government or a local authority for conversion of land for agricultural purpose for any official use.

(2)

[No premium shall be payable where a tenant desires to establish a Tourism Unit on the Land held by him upto an area not exceeding 2000 Sqs Mtrs.]

[Added by Notification No. G.S.R. 16, dated 22.4.2002 (w.e.f. 28.4.1992).]

8.

Application for permission.

- [(1) A Khatedar tenant, seeking permission for conversion of Agricultural land for any non- agricultural purpose shall submit an application complete in all respects in Form-A, alongwith the documents prescribed therein and a copy of challan, indicating the amount of premium deposited to the prescribed authority as under]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

-

Purpose of Conversion

Prescribed Authority

(a)

Residential purpose

(i)

Tehsildar, where the area does not exceed 2000 sq. metres.

(ii)

Sub-Divisional Officer, where the area does not exceed 4000 sq. metres.

(iii)

Collector, where the area exceeds 4000 sq. metres.

(b)

Commercial purpose

(i)

Sub-Divisional Officer, excluding Hotel. Resort, Cinema.

Petrol-pump. Weigh-bridge purposes.

(ii)

Collector for petrol-pump, weighbridge purposes.

(iii)

State Government-for hotel, resort, cinema purposes.

(c)

Salt manufacturing purposes.

(i)

Tehsildar, where the area does not exceed 3 hectares.

(ii)

Sub-Divisional Officer, where the area exceeds 3 hectares.

(d)

Industrial purpose or Industrial area

(i)

Tehsildar. where the area does not exceed 1000 sq. metres.

(ii)

Sub-Divisional Officer, where the area does not exceed 1 hectre.

(iii)

District Collector, where the area does not exceed 20 hectares.

(iv)

Divisional Commissioner where the area does not exceed 30 hectares.

(v)

State Government through the Collector where the area exceeds

30 hectares:

Provided that once an applicant is allowed to convert his land for Industrial purpose in district he shall not be allowed to convert for the same Industrial purpose in the same district:

[Provided further that no application for Conversion shall be required where a tenant desires to establish a small brick kiln (Kajawa) on the land held by him upto an area not exceeding 2500 Sq. metres and such land shall be deemed to have been converted for such small brick kiln (Kajawa). No premium shall be payable for such Conversion.]

[Added by No. G.S.R. 43, Dated 16-7-96; published in Rajasthan Gazette Part 4(Ga), Dated 25-7-96; p. 87(2).]

[Provided also that no application shall be required for conversion where the entire piece of Land and building constructed thereon is to be used exclusively for setting up of Information Technology Industry with the permission of Empowered Committee on Investment chaired by the Chief Secretary. However, the premium shall be payable under these rules. The Information Technology Department shall submit the list of project approved by Empowered Committee on Investment chaired by the Chief Secretary, to the Revenue Department for verification. On such payment and verification by the Revenue Department, the land shall be so entered in the revenue record.]

[Added by Notification No. G.S.R. 15, dated 30.4.2001 (w.e.f. 28.4.1992).]

(e)

Public Utility Purpose

Sub-Divisional Officer

(f) [

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

Medical facilities

State Government through the Collector who shall make necessary verification and enquiry and shall hereafter forward all relevant material as well as the original application to the State

Government]

(2)

[The Prescribed Authority upto the rank of Collector shall, within 30 days and Divisional Commissioner within 45 days of the receipt of the completed application alongwith documents prescribed therein, after making necessary enquiry issue an order of conversion in Form-B or inform the applicant of the rejection of the application or the balance amount of the premium to be deposited:

Provided that no such order of conversion or regularisation shall be passed by the prescribed authority where the application relates to agricultural land falling within the revenue villages of Oria, Utaraj, Aoma Jawai, Achalgarh and Salgaon of Tehsil Abu-Road of District Sirohi without prior approval of the State Government.]

[Inserted by No. G.S.R. 50, Dated 20-8-96; published in Rajasthan Gazette Part 4(Ga), Dated 27-8-96, p. 101(3).]

(2A)

[Notwithstanding anything contained in this rule, in case of conversion of land for industrial purpose where the area of land to be converted is 20 hectares the prescribed Authority shall within 30 days and where the area is exceeding 20 hectares, the prescribed Authority shall within 60 days of submission of completed application alongwith documents prescribed therein, after making necessary enquiry, issue an order of conversion in form-B or in form the applicant about rejection of the application of the balance amount of the premium to be deposited.]

[Added by Notification No. G.S.R. 12, dated 30.4.2001 (w.e.f. 28.4.1992).]

(3)

The prescribed authority shall, within a period of 15 days of the date of receipt of a copy of the challan indicating the amount of balance amount of premium deposited by the applicant, as intimated under sub-rule (2), issue an order of conversion in Form-B.

(4)

In case the prescribed authority fails to issue an order under sub-rule (2) or (3), within the specified period, he shall submit t he file within 10 days to his immediate next higher officer [alongwith reasons of not taking action under sub-rule (2) or (3)]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

who shall pass necessary orders and such orders shall be deemed to have been passed by the prescribed authority in exercise of its powers vested under sub-rule (2) or (3), as the case may be.

(5)

[Notwithstanding anything contained in sub-rule (2), (3) or (4) in case where the application is in respect of conversion of land for an area upto five hectares for industrial purposes, except for which conversion is not permitted under rule 4, the prescribed authority shall within 30 days of receipt of the completed application alongwith the documents prescribed therein, after making necessary enquiry, issue an order of conversion in Form-B or inform the applicant of the rejection of the application or the balance amount of the premium to be deposited. If no such order is made within that period the land applied shall be deemed to have converted for the said industrial purpose.]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

9.

Change in Purpose of Conversion.

(1)

If a person, after the issue of conversion order under rule 8 for any specific purpose, intends to use it other non-agricultural purpose, he shall submit an application to the prescribed authority in Form-C along with a challan indicating the difference amount of premium, if any.

(2)

If a person, to whom land has been allotted under any Rules framed under the Act before the commencement of these Rules for any specific non-agricultural purpose, intends to use it for any other non-agricultural purpose, he shall submit an application to the prescribed authority in Form-C and shall deposit the premium as prescribed under these Rules.

(3)

The prescribed authority shall follow the procedure as laid down in sub-rules (2), (3) and (4) of rule 8 in disposing of an application under sub-rule (1) or sub-rule (2), and issue a revised conversion order in Form D.

10.

Transfer of Land converted for Non-Agricultural purpose.

- Any land, duly converted for any non-agricultural purpose under these Rules [shall not be transferred within two years of such conversion, after two years such land]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

may be transferred without payment of premium of obtaining permission from the prescribed authority:

[Provided that transfer of the land may be made by way of lease or mortgage for the purpose of obtaining loan from the State Government or Land Development Bank as defined in the Rajasthan Cooperative Societies Act, 1965 (Act 13 of 1965

) or a Co-operative Society registered or deemed to be registered as such vide said that or any Scheduled Bank or Rajasthan Finance Corporation. Rajasthan State Industrial Development and Investment Corporation Limited or any other initiative notified by the State Government in that behalf.]

[Inserted by No. G.S.R. 135, Dated 4-11-96; published in Rajasthan Gazette Part 4(Ga), Dated 13-2-97; p. 249(2).]

11.

Entries in the Revenue Records.

- The Tehsildar shall, after the issue of conversion order, reduce the area of Khatedari land, [x x x]

[Deleted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

by making necessary entries in the revenue records.

12.

Regularisation of Conversion.

(1)

A person, who used agricultural land for any non-agricultural purpose without permission, prior to coming into force of these Rules, shall submit an application for regularisation of the conversion to the prescribed authority [within a period of nine months from the date of commencement of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas) (Amendment) Rules, 1994 or within, such period as may be extended by the State Government from time to time]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

along with a copy of the challan, indicating the amount of premium deposited, as prescribed under rule 6.

(2)

[Where Government agricultural land, excluding Charagah lands, , Nadi. Johad. Talab. Agor, Khaliyan. road pathway.

Cremation ground and grave yard used for community, has been encroached upon and converted for a residential or commercial purposes upto 1st January, 1994, and the case is otherwise found for regularisation under these rules such use may be regularised by charging the following rates in all:-

(i)

For Residential purpose

For a village having a population of not more 1500 persons.

Rs.3.00 per sq. metre

For a village having a population of more than 1500 but not more than 3000 persons.

Rs.5.00 per sq. metre

For a village having a population of more than 3000 persons.

Rs. 10.00 per sq. metre

The above rates shall be applicable to actual area of land or 300 sq. metre of land encroached upon and converted, whichever is less.

If the actual area of land encroached upon is beyond 300 sq. metre but not more than 600 sq. metre the rates for an area beyond 300 sq. metre shall be double of the above rates. No regularisation of land beyond 600 sq. metre, shall be allowed.

(ii)

For Commercial Purpose.

The rates for commercial purpose for an actual area of land or for 50 sq. metre of land encroached upon and converted, whichever is less, shall be three times of the rate applicable for residential purpose. For an actual area beyond 50 sq. metre but not more than 100 sq. metre the rate shall be six times of rates applicable for residential purpose. No regularisation of land beyond 100 sq. metre shall be allowed.

In the case of persons belonging to scheduled caste or scheduled tribes the rates recoverable shall be half of the rates for residential or commercial purpose, as the case may be.]

(3)

The prescribed authority shall follow the same procedure for granting or refusing permission as prescribed in rule 6.
13.

Use of land after conversion.

- Any agricultural land, converted for a non agricultural purpose, shall be used for such converted purpose within a period of two years from the date of issue of the conversion order failing which the conversion order shall be withdrawn and the amount of premium deposited shall be forfeited to the State Government:

[Provided that the said period of two years may be extended by one year by the next higher authority, if such higher authority is satisfied:]

[Inserted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

Provided further that an opportunity of being heard shall be given before passing an order of forfeiture of the premium.

14.

Eviction of Trespasser.

- A person, using any 1 and in contravention of rule 4 or the land not recorded in his khatedari tenancy, for any non-agricultural purpose, shall be liable to eviction in accordance with the provisions of section 91 of the Act.

15.

Penalty.

- If a person fails to submit an application within the period specified in sub-rule (1) of rule 12 or has used his khatedari land for any non-agricultural purpose, without obtaining prior permission of the prescribed authority, after commencement of these Rules, such person shall be liable to penalty equal to twenty five per cent of the amount of

premium, in addition to the premium payable under rule 6:

Provided that an opportunity of being heard shall be given before passing an order of the levy of penalty.

16.

Interest.

- A person, who fails to deposit the amount the premium or penalty within the time specified by the prescribed authority shall be liable to pay interest at the rate of eighteen per cent per annum from the expiry of such period.

17.

Deposit of premium or penalty or interest.

- The amount of premium or penalty or interest shall be deposited under the relevant revenue receipt head of the State Government, applicable from time to time, with a challan in a treasury or bank handling Government business.

18.

Payment of premium to Gram Panchayat.

- One half of the premium money deposited under these Rules shall be given by the State Government to the concerned Gram Panchayat through the Tehsildar at the end of every financial year.

19.

Recovery of arrears.

- An arrear of premium or penalty or interest, outstanding against a person under these Rules, shall be recoverable as arrears of the land revenue under the Act.

20.

Repeal and Savings.

(1)

The Rajasthan Land Revenue (Conversion of Agricultural land for Residential and Commercial Purposes in Rural Areas) Rules, 1971 are hereby repealed.

(2)

The following Rules are hereby repealed to the extent they are applicable to the Conversion of agricultural land for non-agricultural purposes in rural areas.

(a)

Rajasthan Land Revenue (Industrial Areas Allotment) Rules, 1959.

(b)

The Rajasthan Land Revenue (Conversion of Agricultural Land into Non-agricultural Land) Rules, 1961.

(c)

Rajasthan Land Revenue (Allotment, Conversion of Land for Construction of Seed Godowns) Rules, 1965.

(d)

Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Construction of Cinemas, Hotels and Establishment of Petrol Pumps) Rules, 1978.

(e)

Rajasthan Land Revenue (Allotment and Conversion of land for Brick Kilns) Rules, 1987:

Provided that such repeal shall not affect any order made, action taken, effects and consequences of anything done or suffered thereunder or any right, title, privilege, obligations or liability already acquired, accrued or incurred thereunder or any enquiry conducted, verification made or proceedings taken in respect thereof.

Form A

[See Rule 8(i)]

Application for Conversion of Agricultural Land for Non- Agricultural Purpose

To,

The Prescribed Authority

(District/Collector/Sub-Divisional Officer/Tehsildar)

Sir,

I/We hereby apply under Rule 8 of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purpose in Rural Areas) Rules, 1992 for the conversion of agricultural land held in my/our khatedari tenancy for non-agricultural purpose, the particulars whereof are given hereunder:

1. Name/Names of Khatedar tenant with father's/husband's name and complete address.

2. Whether the applicant is member of SC or ST.

3. Details of the land sought to be converted:

(a)

Name of the village, Gram Panchayat and Tehsil.

(b)

Whether the land is situated in any periphery village or within the local area of a Municipal Council/Board.

(c)

Khasra No./Nos. of the land alongwith total area of each Khasra No.

Note: Enclose two certified copies of the latest jamabandi.

4. Area (in hectare or sq. mt.) applied for conversion, indicating the exact location of such area in the map.

Note: Enclose two certified copies of the relevant part of the revenue map, showing the land sought to be converted in red ink.

5. Purpose of conversion.

6. Whether the land is covered by Urban Land (Ceiling and Regulation) Act, 1976.

7. Whether the land declared surplus under the Rajasthan Imposition of Ceiling on Agricultural Holdings Act, 1973 or under the repealed Chapter III-B of the Rajasthan Tenancy Act, 1955.

8. Whether the land is under acquisition under the Land Acquisition Act, 1984.

9. Whether the land was allotted to the applicant by the State Government for any specific purpose. If so, give the No. and date of the order.

10. Land use shown in the Master Plan, if applicable.

11. Distance from the Railway line. National Highway. State Highway or any other road or rural path way (in Ft.)

12. Distance from the outer limit, of the Abadi of a village in case of industrial purpose.

13. Whether the application is submitted under rule 12 for regularisation of the construction made prior to coming into force of these Rules.

14. Rate of premium payable.

15. No. and date of the challan making the payment of the premium (Note: Enclose original/copy of the challan).

16. Any other relevant information.

I/We hereby certify that the above particulars are correct according to my/our knowledge and belief.

Yours faithfully.

Place:

Dated:

Signature/s of Applicant

(Name of Applicant)

[Please note the following carefully]

[Substituted by No. G.S.R. 84, Dated 1-10-1994; published in Rajasthan Gazette Part 4(Ga), Dated 20-10-94.]

-

This application shall invariably be accompanied by the following-

(a)

Two certified copies of the latest Jamabandi.

(b)

Two certified copies of the relevant part of the revenue map, showing the land sought to be converted in red ink.

(c)

Original copy of the Challan.

Receipt

Received a completed application in the prescribed proforma for permission to use agricultural land for non-agricultural purpose residential/Commercial/Industrial/Salt/Public Utility Purpose alongwith the documents stated below-

Name of the Applicant

Documents required to be enclosed

Documents received

(State full detail and do not tick mark.)

(a)

Two certified copies of latest Jamabandi.

(a).....

(b)

Two certified copies of relevant portion of the revenue map showing the land sought to be converted in red ink.

(b)

(c)

Original/copy of the Challan.

(c)

(Signature)

Prescribed Authority (Divisional Commissioner/Collector /S.D.O./Tehsildar)]

Form B

[See Rule 8(2) & (3)]

Office of Prescribed Authority (District Collector/S.D.O /Tehsildar)

No.

Dated:

Conversion Order

On the application of Shri.....of village.....Tehsil..... agricultural land held by him in his khatedari tenancy is hereby converted for a non-agricultural purpose under rule 8(2)/8(3) of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural in Rural Areas) Rules, 1992, the particulars of which are given as under:

1. Names of applicant Khatedar/tenants with father's/husband's name and complete address.

2. Whether the applicant is a member of SC/ST.

3. Details of the land converted:

(a)

Name of the village/Gram Panchayat/Tehsil.

(b)

Khasra No. of the land alongwith area of each Khasra No. (in hectare).

(c)

Area converted (in hectare or sq. mtr.) indicating the area of each Khasra No.

Note: A duly verified copy of the relevant part of revenue map showing the land converted for non-agricultural purpose is enclosed.

4. Purpose of conversion.

5. Rate of premium payable.

6. Amount of premium deposited with No. and date of the challan.

7. Amount of penalty deposited, if any, with date and no. of challan.

8. Amount of interest deposited, if any. with date and no. of challan.

9. Whether the order issued under Rule 12 for regularisation.

10. Other particulars, if any.

11. The above conversion order shall be subject to the following conditions-

(i)

The land converted for the above non-agricultural purpose shall not be used for any other non-agricultural purpose, without obtaining prior permission of the prescribed authority.

(ii)

If the applicant fails to use the land for the converted purpose within a period of 2 years from the date of the issue of this order, the permission shall be withdrawn and the premium money deposited by the applicant shall be forfeited.

(iii)

No land as mentioned in rule 4 shall be used for any non-agricultural purpose.

(iv)

No part of the land converted for public utility purpose shall be used for any other non-agricultural purpose without valid permission from the Prescribed Authority.

Seal of the Prescribed Authority

Signature of the Prescribed Authority (District Collector/SDO/Tehsilcler)

No:

Date:

Copy to:

1. The District Collector.....
2. Gram Panchayat.....
3. The applicant Shri.....

Signature of the Prescribed Authority

Form-C

[See Rule 9(1)/9(2)]

Application for Change in Purpose of Conversion

To,

The Prescribed Authority

(The District Collector,

Sub-Divisional Officer,

Tehsildar.....)

Sir,

I/We hereby apply under Rule 9 of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purpose in Rural Areas) Rules, 1992 for change in purpose of conversion from.....to.....the particulars whereof are given hereunder: (Purpose) (Purpose).

1. Name of the applicant with father's/ husband's name and complete address.
2. No. and date of the original conversion order (Note: Enclose a photo copy of the order).

OR

No. and date of the allotment order (Note: Enclose a copy of the order).

3. Purpose for which the land was converted:

OR

Purpose for which land was allotted.

4. Revised purpose of conversion.
5. Details of the land, the purpose of which is sought to be changed:

(i)

Name of village/Gram Panchayat/Tehsil

(ii)

Khasra No./Nos. of the land with total area of each Khasra No.

6. Area (in hectare/sq. mtrs.) sought to be converted for revised purpose, indicating the exact location of such area in the map.

Note: Enclose two certified copies of relevant part of the revenue map, showing the land sought to be converted in red ink).

7. Rate of premium payable for the original conversion.
8. Rate of premium payable for the revised conversion.
9. Amount of difference of premium.
10. No. and date of the challan depositing difference amount of premium (Note: Enclose original copy of challan).
11. Any other relevant information.

I/We hereby certify that the above particulars are correct according to my/our knowledge and belief.

Yours faithfully

Signature of Applicant

(Name of Applicant)

Place:

Date:

Receipt No.

Received the application from Shri for conversion of Khasra No in village today i.e.....

Signature

Prescribed Authority

(The District Collector/ SDO/Tehsildar)

Place:

Date:

Form-D

[Sec Rule 9(3)]

Office of the Prescribed Authority (District Collector/SDO/Tehsildar)

No.

Date:

Revised Conversion Order

On the application of Shri..... of.....village.....Tehsil.....the agricultural land already converted for a non-agricultural purpose is hereby converted for revised non-agricultural purpose under rule 9(3) of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non- Agricultural in Rural Areas) Rules, 1992, the particulars of which are given as under:

1. Name of the applicant with father's/ husband's name and complete address.
2. Whether the applicant is a member of SC/ST.
3. Purpose of original conversion indicating the No. & date of the order.

OR

Purpose for which land was allotted, indicating the date and no. of the order.

4. Revised purpose of conversion.

5. Details of the land converted:

(a)

Name of the village/Gram Panchayat/Tehsil

(b)

Khasra No. of the land alongwith area of each Khasra No. (in hectare).

(c)

Area converted (in hectare/sq. mtr.) indicating the area of each Khasra No.

Note: A duly verified copy of the relevant part of revenue map showing the land converted for revised non-agriculture purpose is enclosed.

6. Rate of premium payable on original conversion.
7. Amount of premium deposited with original application with No. and date of challan.
8. Rate of premium payable on revised conversion.
9. Difference Amount of premium deposited alongwith No. and date of challan.
10. Amount of penalty deposited, if any. with date & No. of challan.
11. Amount of interest deposited, if any with date & No. of challan.
12. Other particulars, if any.
13. The above conversion order shall be subject to the following conditions-

(i)

The land converted for the above non-agricultural purpose shall not be used for any other non-agricultural purpose, without obtaining prior permission of the prescribed authority.

(ii)

If the applicant, fails to use the land for the revised converted purpose within a period of 2 years from the date of the issue of this order, the permission shall be withdrawn and the premium money deposited by the applicant shall be forfeited.

(iii)

No land as mentioned in rule 4 shall be used for any non-agricultural purpose.

(iv)

No part of the land converted for public utility purpose shall be used for any other non-agricultural purpose without valid permission from the Prescribed Authority.

Seal of the Prescribed Authority

Signature of the Prescribed Authority

(District Collector/SDO/Tehsildar)

No:

Date:

Copy to:

1. The District Collector.....
2. Gram Panchayat.....
3. The applicant Shri.....

Signature of the Prescribed Authority

[Inserted by No. G.S.R.52, dated 29-8-1998, published in Rajpatra part IV (ga), dated 4-9-1998, p. 163(3).]

Related AI tags, queries and research notes

Translation